

London Borough of Barking and Dagenham Local Plan

Matter 6 – Other Housing Matters (Strategy Policy SP3 and Policies DMH1, DMH2, DMH3, DMH4, DMH5)

Matter 6, Issue 1- Whether Policies SP3, DMH1, DMH2, DMH3, DMH4, DMH5) are justified, effective, consistent with national policy and in general conformity with the London Plan in relation to its approach to housing

Policy SP3 Delivering homes that meet peoples' needs

Q1. Is the reference to affordable housing in Strategic Policy SP3 accurate or does it need to apply to a wider range of residential development? Is it fully consistent with the approach taken to the provision of affordable housing in the London Plan?

2 a) refers to 50 per cent affordable housing private sector housing schemes. This is unsound as the London Plan requires at least 50 per cent affordable housing on public owned land as well which will include development proposals advanced by public organisations. The policy should be amended to be consistent with the London Plan.

Q2. Is criterion 2a) in setting a 50% strategic affordable housing target, justified effective, consistent with national Policy and in general conformity with the London Plan? What is meant by all private sector schemes? What evidence is there which assesses whether or not this target is likely to be met and any associated implications? What is meant by the word 'strategic'?

Since the HBF's representations were originally written in November 2020 market conditions have changed dramatically. The cost of materials and labour have risen considerably, the effect of the government's requirement for secondary staircases (Part B of the Building Regulations) in schemes for buildings of 18m in height or more will affect the viability of many development proposals considerably, and the financial pressures facing Registered Providers owing to regulatory changes means that there is much less appetite / ability among them to acquire new residential stock. This means that the likelihood that housebuilders will be able to provide 50 per cent affordable housing is much reduced. It is now a common experience for registered providers to pull out of S106 affordable housing deals.

We note the following conclusion in the Executive Summary to the Council's viability assessment (London Borough of Barking and Dagenham Draft Local Plan Viability Study, September 2020):

The results generated by our appraisals identify that there are significant variations in the percentages of affordable housing that can be provided, depending on private sales values, scheme composition and the existing use value of the site. The results do not point to any particular level of affordable housing that most schemes can viably deliver and we therefore recommend that the current the current strategic target of 50% with a minimum target of 35% be retained, applied on a 'maximum reasonable proportion' basis taking site-specific circumstances into account. Setting a lower proportion of affordable housing is likely to result in a lower overall number of affordable units being delivered, as sites that could have delivered more would no longer do so.

The 50 per cent affordable housing target is more of n aspirational target than one that can be feasibly delivered in all cases. The effect will be to weigh-down all applications, or permissions,

in lengthy renegotiations making even greater claims on already stretched local authority resources.

We recommend, instead, that the Council reverts to the London Plan policy for affordable housing.

The Council should also amend the policy to introduce a cascade mechanism allowing housebuilders to renegotiate the affordable housing so that an element of the dwellings earmarked for affordable housing can convert to market sale.

Q3. Having regard to criterion 2c) and the PPG1 what is the requirement for accessible housing in the Borough and how would the Council's approach meet it or not? Should Policy SP3 be more explicit in terms of the proportion of accessible new homes that should be delivered on schemes? Is a threshold required? Should the accessible homes sought be expected to accord with specific accessibility standards to be effective?

This goes further than the London Plan which requires that 10 per cent of dwellings in any scheme are built to wheelchair accessible standard (i.e. Part M4 (3)). This has not been assessed as part of the viability appraisal. We note the following passage in the viability report:

Accessibility standards

4.26 Our appraisals assume that all units are constructed to meet wheelchair accessibility standards (Category 2) apply to all dwellings at an average cost of £521 per house and £924 per unit for flats. In addition, we have assumed that Category 3 standard applies to 10% of dwellings at a cost of £22,694 per house and £7,908 per flat¹⁵. These costs address both parts A and B of the requirements (i.e. that the communal areas are designed and fitted out to allow wheelchair access and also that the dwellings themselves are designed and fitted out to facilitate occupation by wheelchair users).

From this it is apparent that the Council has assessed the viability of the requirements in the London Plan (90 per cent at Part M4 2 and 10 per cent at Part M4 3).

The Plan should be amended so that it defers to the London Plan requirements.

Q4. Does Strategic Policy SP3 adequately recognise the need for specialist older persons accommodation? Is the need for his type of accommodation clear and is there any evidence which assesses whether that need would be met together with any associated implications?

We refer to our representations. We would like to see a reference in the Local Plan to the benchmark requirement for older persons' housing in London Plan policy H13. This is necessary to ensure that the local plan provides sufficient support in policy to achieve this target, which is for 70 dwellings per annum.

Policy DMH1

Affordable housing

Q8. Is the Policy consistent with the London Plan, including early and late-stage reviews? Is there a need to clarify when these reviews are necessary for effectiveness?

The approach is in line with the London Plan but it would be helpful if the Local Plan described the process for early and late stage reviews.

The Mayor of London has consulted on changes to his threshold approach to affordable housing but it is questionable whether these changes can be followed or incorporated in the

Local Plan as it is the adopted London Plan that is the development plan, rather than any planning guidance issued subsequently.

Q9. What evidence is there to support the affordable housing tenure split set out in figure 22?

Q10. Is it clear when residential proposals qualify for the fast-track route as set out in London Plan H5?

The London Plan provides a 'fast-track' if applicants commit to providing 35 per cent.

We assume that there is no 'fast-track' route available in Barking and Dagenham because baseline for affordable housing has been set at 50 per cent.

As we have argued above, the viability evidence plus more recent evidence of market conditions demonstrates that achieving 50 per cent affordable housing is unlikely in most cases. The Council should revert to the London Plan and the fast-track approach to affordable housing.

Policy DMH3 Specialist housing

Q14. Having regard to the PPG1 and to be consistent with national policy, is there a need for specialist housing in the Borough for older people? If there is, will that need be met by the Plan and what are associated implications? Should the Policy include a target for the provision of new specialist older persons housing?

The Local Plan should be amended to refer to the London Plan figures for the number of dwellings for older people that the Council should aim to provide each year. This is 70 per year.

Q15. Do the terms 'specialist housing' and 'specialist older persons housing' need defining or is the glossary definition sufficient?

This can be a complicated area. The Council should refer to the London Plan and the definitions included at paras. 4.13.4 to 4.13.6.

Specifically, the London Plan Policy H13, and the benchmark figure, is aimed at providing housing for older people with the following attributes:

"Specialist older persons housing that does not provide an element of care but is specifically designed and managed for older people (minimum age of 55 years) is covered by the requirements of this policy" (para. 4.13.5)

and

i. where care is provided or available;

a. there are separate contracts/agreements in place for the personal care and accommodation elements, and/or

b. residents have a choice as to who provides their personal care

ii. housing is occupied under a long lease or freehold, or a tenancy agreement, licensing agreement, license to occupy premises or a leasehold agreement

iii. housing provided is specifically designed and managed for older people (minimum age of 55 years)

iv. likely CQC-regulated activity⁷³ will be 'personal care'

(para. 4.13.6).

